

basis of his common general knowledge how to obtain the required starting materials or intermediates. Information which could only be obtained after a comprehensive search was not to be regarded as part of the common general knowledge. This need for an **enabling disclosure** was also in conformity with the principle expressed in Art. 83 EPC 1973 for patent applications which had, accordingly, to "disclose the invention in a manner sufficiently clear and complete for it to be carried out by a person skilled in the art". The requirements as to the sufficiency of the disclosure were, therefore, identical in all these instances.

In T 719/12 neither party contested that document (1) disclosed the compound methyl-2-(α -thenoyl)-ethylamine by name. The board held that document (1) alone did not make the compound available to the public, since the specific attempts to prepare it which were described in that document had failed. Therefore, the board concluded that it had not been made available to the public, as no method for its preparation had been available at the publication date of the prior art.

For selection inventions the requirement of a reproducible disclosure also plays a significant role. In T 26/85 (OJ 1990, 22) the ranges of a certain parameter as defined in the claim fell within the broader ranges stated for the same parameter in a prior art document. The board considered that a realistic approach, when assessing the novelty of the invention under examination over the prior art in a case where overlapping ranges of a certain parameter existed, would be to consider whether the person skilled in the art would, in the light of the technical facts, seriously contemplate applying the technical teachings of the prior art document in the range of overlap; if it could be fairly assumed that this would be the case, it had to be concluded that no novelty existed. Such was not the case in the matter under consideration, since there existed in the prior art a reasoned statement clearly dissuading the person skilled in the art from using the range under a certain value, and the range of overlaps was under this value; the claimed range was therefore considered novel (see also T 255/91).

In T 447/92 the board held that the cited document did not disclose when or how far a movable piece in the claimed invention (an air circuit breaker) moved, or the way in which it worked to prevent the spring-back of a lever. No relative movement was described or shown in the drawings and it was a matter of conjecture as to the manner in which the relevant parts co-operated. The board found that it might have been obvious to a skilled person that the notch could co-operate with the shaft in the manner defined in the claims of the patent in suit, but that this only meant that the disclosure took him close enough to do the rest himself. It did not mean that the document took the skilled person all the way to the present invention. Thus, the features of the air circuit breaker according to claim 1 of the application were not unambiguously derivable from the drawings of an earlier European patent application.

In T 310/88 the board of appeal had to consider a discrepancy between what actually happened in practice when carrying out a technical teaching in a prior document according to the letter of its description, and what this prior document said would happen. The board held that the invention was novel over the prior document because the latter did not contain a sufficiently clear teaching for that conclusion not to be reached (see T 23/90).

In **T.491/99** the board held that an earlier patent, which used terminology which at first sight was suggestive of the product invention claimed, was not in fact a prejudicial disclosure if a skilled person could actually only make the product in question later, from the process and machine described for the first time in the European patent in suit.

In **T.1437/07** the board pointed out that a disclosure in a prior art document is novelty-destroying only if the teaching it contains is reproducible. This need for an enabling disclosure is in conformity with the principle expressed in **Art. 83 EPC**. Thus, the requirements of sufficiency of disclosure are identical for a prior art document and a patent. The board followed the principles developed by the case law in the framework of the evaluation of the requirements of **Art. 83 EPC** in the case of a medical use, i.e. that the skilled person should not only be able to carry out the teaching of the prior art document, but it should also be credible that the effect at issue – here, relief of pain – has been achieved (see also **T.491/08**).

In **T.578/12** the appellant contested that claim 1 of the main request was not new in view of prior art document D1, an Australian patent application; its main argument was that D1 had no drawings or any description of a detailed embodiment of any dispensing machine and could not be regarded as an enabling disclosure. The board noted *inter alia* that the fact that D1 did not contain any figures did not hinder the skilled person from understanding the described method or from carrying it out. The decision in this case gives an example of a detailed set of reasons for the outcome of examining features disclosed by a prior-art document.

In **T.1457/09** claim 4 was drafted as a second medical use claim. In the decision under appeal the opposition division held that the subject-matter of the corresponding claim was anticipated by the intermediate document (D1). The opposition division considered that both documents (D1) and (D1a, the priority document of D1) disclosed pharmaceutical compositions comprising the peptide RMFPNAPYL and their use as a cancer vaccine. The board found that for the requirement of reproducibility to be considered as fulfilled in relation to a medical use it is necessary that the disclosure in the prior-art document is such as to make it credible that the therapeutic effect on which the disclosed treatment relies can be achieved (**T.609/02**). The board held that in the case at issue a prior art document was novelty-destroying only if it disclosed not only the product referred to in the claim – here RMFPNAPYL – for the claimed therapeutic application – here treatment of cancer – but also that the claimed product was indeed suitable for the claimed therapeutic application. The board concluded that the experimental results disclosed in document (D1a) were not sufficient to make it credible that the RMFPNAPYL peptide was suitable for the treatment of cancer. Therefore document (D1) did not destroy the novelty of the subject-matter of claim 4.

5. Ascertaining differences

Once the state of the art has been established, using the criteria described above, and its content has been determined, the final step is to ascertain whether the invention in question differs from the prior art.

5.1. Comparing each individual item from the prior art

When the invention is compared for novelty purposes with the state of the art as determined by applying the criteria described above, this must be done only on the basis of each element of prior art taken as a whole (see T 153/85, OJ 1988, 1; T 124/87, OJ 1989, 491; T 233/90, T 904/91).

According to the boards' settled case law, a strict approach must be taken to assessing novelty and, in cases of ambiguity or doubt, the content of a prior publication must be interpreted narrowly (see T 447/92, T 988/95, T 722/00, T 1517/11).

In T 291/85 (OJ 1988, 302) the board noted that the disclosure in a prior publication always included not only what it presented as the teaching of the invention but also what it referred to as the prior art. In the board's view, however, when examining for novelty, to read into an account of the state of the art couched in very general terms specific details of the inventive teaching of the same document was permissible only where a person skilled in the art would in fact have made this combination when reading this document. Thus, the board concluded that if a citation gave detailed information about a further development of a prior art described only in very general terms without quoting a specific source, it was not permissible in examining for novelty to combine these general statements with the specific statements made solely in order to explain the said development, unless a person skilled in the art would have made the combination when reading the citation.

In T 288/90 the board observed that, although for the purposes of assessing novelty it was not normally legitimate to read two documents together, nevertheless, when interpreting a single document, it was necessary to read it having the general technical knowledge in mind, and for this purpose to look at representative technical literature as an aid to the correct interpretation of any particular term of art encountered.

In decision T 56/87 (OJ 1990, 188) the board emphasised that the technical disclosure in a document should be considered in its entirety, as it would be by a person skilled in the art, and that there could be no justification for arbitrarily isolating parts of the document in order to derive therefrom an item of technical information which would be distinct from or even contradict the integral teaching of the document. Thus, a technical feature which was derived from or based on dimensions obtained from a schematic illustration and which technically contradicted the teaching of the description did not form part of the disclosure of this document (see T 332/87, T 441/91 and T 657/92).

5.2. Distinguishing features

In T 4/83 (OJ 1983, 498) the board held that when assessing novelty, it should be taken into consideration that any information in a patent specification which conveyed to the person skilled in the art a technical teaching, belonged to the content of the disclosure irrespective of whether or not it fell within the scope of the claims or what purpose it served.

In T 223/05 the board held that the interpretation of the extent of the protection of a patent was not the task of the EPO, but, according to Art. 64 and 69 EPC 1973, that of the

national courts competent in procedures on infringement cases (T. 740/96, T. 442/91). In particular, Art. 69 EPC 1973 did not offer any basis for reading into a claim features which could be found in the description when judging novelty (T. 1208/97).

5.2.1 Difference in wording

In T. 114/86 (OJ 1987, 485) the board held that a mere difference in wording was insufficient to establish novelty (see T. 12/81, OJ 1982, 296; T. 198/84, OJ 1985, 209; T. 248/85, OJ 1986, 261). In T. 565/90 the appellant submitted that only preferred ranges or examples amounted to a technical disclosure destructive of novelty, and that generic ones could not anticipate the more specific teaching of the patent in dispute. The board did not agree and confirmed earlier case law that the definition of an invention which differed from the prior art only in its wording was insufficient to establish novelty. The board stated that what had to be established was whether or not the state of the art made the subject-matter of the invention available to the skilled person in the form of a technical teaching.

In T. 917/94 the board stated that incorporation of a technical feature which is redundant because it does not change the claimed subject-matter does not impart novelty to known subject-matter.

In T. 826/94 the board was of the opinion that a claimed measuring device, which showed all the constructive features of a known measuring device and differed from the latter only in name, i.e. in the dimensions to be measured, was novel if it was only at the level of abstract thought, when the basic principles of the two measuring devices were compared with each other, that the conclusion could be drawn that the two measuring instruments were of the same type.

In T. 452/05 the board noted that, in principle, a specific term was not anticipated by a generic term. Nevertheless, in T. 870/95 an exception was made if it were proven that, in the light of common general knowledge, the generic term could only be understood in the meaning of the more specific term. Since this was not the case, the board concluded that the generic term ("water permeable membrane") did not anticipate the specific term ("filtering paper").

In T. 79/96 an extract from a handbook (D1) disclosed all the features of claim 1 of the patent in issue apart from the use of a "countercurrent gas/gravity classifier". Thus, with respect to novelty it only had to be decided whether a vibrating fluidised bed with an upwards gas flow through the bed of particles as described in D1 should be regarded as a countercurrent gas/gravity classifier. The definition of a countercurrent gas/gravity classifier was given in an extract from another standard handbook on chemical technology (D3). The proprietor of the patent was of the opinion that the definition given in D3 was too broad and that a person skilled in the art would not consider a fluidised bed, being a rather inefficient classifier, as a countercurrent gas/gravity classifier. The board did not share this view. It held that, when assessing novelty of the claimed subject-matter, an expression in a claim should be given its **broadest technically sensible meaning**. On that basis, any gas/gravity classifier, including a fluidised bed, satisfied the classification requirements of

the claim 1 of the patent at issue. The subject-matter therefore lacked novelty over D1 (see also T 596/96, T 1126/05, T 452/11, T 2446/12).

5.2.2 Differences in values

In T 74/98 the board found no reason to round up figures obtained by converting prior art values originally expressed in a different unit of measurement. It was evident that any rounding-up following the conversion of these figures into molar amounts would affect the definition of those compositions. The board noted that it was also evident that the true meaning of a specific disclosure could not be influenced by the units chosen to express it and that the objection of lack of novelty relied on an ambiguity introduced artificially by the appellant.

In T 1186/05 the board drew a distinction between the case before it and the case before the board in T 74/98. In the latter case, the board had considered that rounding up to the next integer (thus matching the lower limit of the claimed "inventive" range) of a component's molar percentage having two decimal places, calculated by conversion from its weight proportion, was not justified because (i) this would lead to a broadening of the claimed range and (ii) reconversion of the rounded molar percentage to the corresponding weight proportion would also imply a modification of the latter, i.e. would alter the true meaning of this specific disclosure. However, in the case before it, the board in T 1186/05 pointed out that rounding up was required, in order to enable two density values to be compared, each one reflecting a "true" density value having three (or more) decimal places, but expressed to a different degree of accuracy, i.e. one having three and the other one having only two decimal places. Thus, the rounding exercise put the claimed and the prior art density values on the same level by using the mathematical rule existing for that purpose. This exercise had no impact on the density value as disclosed in the prior art document (see also T 708/05).

In T 234/09 the board observed that the claims defined the fibre composition in terms of numerical ranges of its constituent parts' percentage by weight, the appellant patent proprietor having chosen to express most of those ranges' limits as whole numbers. It found that, in the context of the patent in suit, the skilled person would appreciate that the whole numbers defining the limits of the ranges in claim 1 were not to be understood as whole numbers in the mathematical sense, and that they were therefore to be seen as limits deliberately expressed in a less precise form than the decimal numbers set out in the patent specification. Consequently, they also included the decimal numbers from which they resulted on application of the rules on rounding up numbers. It noted that the boards had already taken a similar approach in comparable cases (see e.g. T 1186/05). Two of the decisions cited by the appellant had concerned situations in which, by contrast with the specific circumstances of the case in hand, there had been no particular reason to round up a figure disclosed only implicitly in the prior art (see T 74/98, T 646/05). The board concluded that the percentage in the prior art, as rounded up for the purpose of comparison, could not be distinguished from the upper limit in claim 1 and that, therefore, the subject-matter of that claim was not novel.